IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Bail in terms of section 83 (2) of the Poisons, Opium and Dangerous Drugs (Amendment) Act No. 41 of 2022.

CA Case No: BAL/125/2023
HC- Colombo
Case No: HC/3356/21

Veeravagu Sugandira Valli,
No. 233/29,
Henamulla,
Colombo 15.

Petitioner

Vs.

1. Hon. Attorney General,
   Attorney General's Department,
   Colombo 12.

2. Officer-in-Charge,
   Police Narcotics Bureau,
   Colombo.

Respondents

And

Selliah Anandan

Accused- Respondent

Before: **R. Gurusinghe J.**

&

M.C.B.S. Morais J.

Counsel: Nalin Weerakoon with Kanishka Lasith Gunathilake for the Petitioner.

Jehan Gunasekara, SC for the Respondents.

Inquiry on: 15.03.2024

Decided On: **09.05.2024**

M.C.B.S. Morais J.

The petitioner is said to be the mother-in-law of the accused in the case bearing number HC/3356/21 in the High Court of Colombo.

It is apparent that the accused was arrested on or about the 16th of September 2020 by the Police Narcotic Bureau and was produced before the Magistrate Court of Colombo on the 16th of September 2020 and facts were reported under Case No. B/41544/20. The accused was indicted in the High Court of Colombo for being in possession and trafficking of 27.68 grams of 'Diacetylmorphine' alias 'Heroin' but the initial gross quantity was said to be 99.61 grams.

It is apparent that, though the accused made several bail applications before the Learned High Court Judge, they were refused by the judge stating that there were no sufficient grounds.

The petitioner has made this application before us under section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act, No.41 of 2022. As for the provisions of section 83(2),

> *"83(2) notwithstanding the provisions of sections 84 and 85, a person suspected or accused of an offence under subsection (1) of section 54A and section 54B-*
>
> *(a) of which the pure quantity of the dangerous drug, trafficked, imported, exported, or possessed is ten grams or above in terms of the report issued by the Government Analyst under section 77A; and*
>
> *(b) Which is punishable with death or life imprisonment, shall not be released on bail except by the Court of Appeal in exceptional circumstances."*

In, ***Ramu Thamotharampillai V. The Attorney General*** **[2004] 3 SLR 180**, it was held that;

> *"the decision must in each case depend on its own peculiar facts and circumstances"*

In, ***Labynidarage Nishanthi V. Attorney General*** **CA (PHC) APN 48/2014)**, said that;

"…the term 'exceptional circumstances' has not been explained or defined in any of the statutes. Judges are given a wide discretion in deciding in what creates a circumstance which exceptional in nature."

In, ***Welathanthrage Amila Sampath Botheju V. Attorney General*** **CA/BAL/0239/23**, it was held that;

"…a certain situation amounts to exceptional circumstances or not, has to be considered on a case-by-case basis, unique to each application before the court."

When applied in relation to the facts before us, in paragraph 09 of the petition, the petitioner pleads certain grounds which are alleged as exceptional grounds and they are as follows:

a) The Accused was taken into custody on the 16th September 2020 and in remand custody for more than 02 years and 04 months.
b) Hon. Attorney General has not made submission for the extension of the remand period before the Learned High Court Judge stating exceptional circumstances.
c) Two other suspects taken into custody along with the Accused were enlarged on bail by the High Court and the Accused has no pending cases or previous conviction against him.

It is apparent that the accused has been in remand custody for more than 43 months and the matter has been pending before the High Court for more than two years. There is nothing to indicate that the evidence of the first prosecution witness has been concluded yet. Therefore, it is apparent that there is a long delay which is unusual in general.

On perusal of the material submitted by the petitioner herself, it is apparent that the wife of the suspect, probably the daughter of the petitioner has two pending matters in relation to the same illegal substance which has to be considered appropriately in imposing bail conditions.

Therefore, I am of the view that heavy bail conditions should be imposed to protect the society from this accused by reoffending. Accordingly, bail is granted on the following conditions.

1. The accused should provide a cash bail of Rs. 500,000.

2. To provide two acceptable sureties. They must sign a bond of Rs. 2,000,000/= each.
3. The accused should report to the Officer in Charge of the Police Narcotic Bureau on every first and third Sunday of the month until the conclusion of the matter.
4. The bail should be canceled and/or confiscated upon this accused being arrested again in connection with another offence alleged to have been committed while on bail or on violation of any of the bail conditions.
5. To surrender the passport of the suspect if any, to the court. A travel ban is imposed on the accused. The controller of Immigration and Emigration is to be informed of the travel ban of the accused.
6. The permanent residing address of the accused should be provided to the court, and such residence should not be changed without leave of the court until the conclusion of the case.

Subject to the conditions set out above, bail is granted. The registrar of this court is directed to send copies of this bail order to the High Court of Colombo and the Officer in Charge of the Police Narcotics Bureau to inform the due compliance to the trial court.

Judge of the Court of Appeal

R. Gurusinghe J.

I agree

Judge of the Court of Appeal